EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Application no. 75147/17
María Carmen FORCADELL I LLUIS and others
against Spain

The European Court of Human Rights (Third Section), sitting on 7 May 2019 as a Chamber composed of:

Vincent A. De Gaetano, *President,*
Georgios A. Serghides,
Paulo Pinto de Albuquerque,
Helen Keller,
Alena Poláčková,
María Elósegui,
Gilberto Felici, *judges,*

and Stephen Phillips, *Section Registrar,*

Having regard to the aforementioned application lodged on 11 October 2017,

Having deliberated, decides as follows:

THE FACTS

1. The applicants are 76 Spanish nationals living in Barcelona. They are represented before the Court by Mr Andreu Van den Eynde, a lawyer practising in Barcelona.

2. At the material time the applicants were MPs and members of the parliamentary groups *Junts pel Sí* and *Candidatura d'Unitat Popular Crida Constituent* in the Parliament of the Autonomous Community of Catalonia. They include the former Speaker of that Parliament and the President of the Catalan Government.

3. The list of applicants is appended.

A. Circumstances of the present case

4. The facts of the case as presented by the applicants may be summarised as follows.

1. Origin of the case: laws and resolutions adopted by the Parliament and the Autonomous Community of Catalonia

5. The Court refers, in that connection, to the decision in the case of *Aumatell i Arnau v. Spain* ((dec.), [committee], no. 70219/17, §§ 3 to 7 and 21 to 25, 11 September 2018).

2. Proceedings concerning the applicants

6. The referendum to decide on the unilateral secession of Catalonia from Spain was held on 1 October 2017.

7. On 4 October 2017 two parliamentary groups (*Junts pel Sí* and *Candidatura d'Unitat Popular Crida Constituent*) representing 56.3% of the seats in Parliament, requested that the Bureau of the Catalan Parliament (comprising the Speaker of Parliament, two Vice-Presidents and four secretaries) convene a plenary sitting of Parliament on 9 October 2017, at which the President of the Government of Catalonia was to have assessed the results of the 1 October referendum and the effects of those results, pursuant to section 4 of Law no. 19/2017 on "the self-determination referendum".

8. On the same day the Bureau of the Parliament met to decide whether to accede to the request for a sitting. At that meeting the Chief Clerk and the Secretary General of the Parliament submitted a report warning that the approval of a formal declaration of independence or any other initiative aimed at the application of Laws nos. 19/2017 and 20/2017 would contravene the suspension of those two Laws as ordered by the Constitutional Court.

9. The Bureau acceded to the request and the plenary sitting was scheduled for 9 October at 10 a.m. Three other parliamentary groups representing 43.7 % of the seats contested the organisation of the sitting on the grounds that it infringed the Rules of the Catalan Parliament. Their complaints were dismissed by the Bureau of the Parliament.

10. Sixteen members of the socialist parliamentary group then lodged an *amparo* appeal with the Constitutional Court and requested the suspension of the plenary sitting as an interim measure. They alleged that the organisation of the sitting infringed their right to discharge their public duties undisturbed, pointing out that a sitting aimed at issuing a declaration of Catalan independence ran counter to the suspension ordered by the Constitutional Court in respect of Laws nos. 19/2017 and 20/2017.

11. On 5 October 2017 the Constitutional Court declared the appeal admissible and ordered the provisional suspension of the 9 October parliamentary sitting pending a decision on the merits. In its decision the

Constitutional Court gave the Public Prosecutor's Office and the other intervening parties ten days to submit their pleadings concerning the interim measure ordered.

12. On 10 October 2017 (the day after the date for which the sitting had initially been convened) the President of the Catalan Government appeared before the plenary Parliament and declared Catalonia an independent republic, immediately inviting Parliament to suspend the effects of that declaration.

13. The Constitutional Court decided on the merits of the 26 April 2018 *amparo* appeal, allowing the appellant MPs' claims. It observed that the procedure followed by the Bureau of the Parliament in order to convene the plenary sitting had, in particular, ignored the provisional suspension of Law No. 19/2017 as ordered by the Constitutional Court on 7 September 2017 and prevented the appellant parliamentarians from lawfully performing their duties (*jus in officium*) pursuant to Article 23 of the Spanish Constitution. Moreover, the Bureau had also indirectly infringed the citizens' constitutional right to participate in public affairs through the intermediary of their representatives. The Constitutional Court pointed out in that connection that it was the Catalan Parliament's task to represent the whole population rather than just a number of specific political forces, even if they were in a majority in the House.

B. Relevant domestic law and case-law

1. Constitutional Court Act

section 56

"1. The lodging of an *amparo* appeal shall not suspend the effects of the impugned act or judgment.

...

6. In exceptional cases of urgency, the suspension and any interim measures may be adopted as part of the admissibility decision. Such adoption may be challenged by the Public Prosecutor's office or the other parties within five days of its notification. The Chambre or Section will settle such challenge by a decision (*auto*) against which no appeal shall lie."

2. Law No. 19/2017 of 6 September on the referendum on self-determination

section 4 § 4

"If the total number of votes validly case comprises more ballots in favour than against, the outcome will point to the independence of Catalonia. Accordingly, the Catalan Parliament must, within two days after the announcement by the Electoral Board of the official results, hold an ordinary sitting in order formally to declare the independence of Catalonia, implement its effects and initiate the constituent process".

3. Rules of Procedure of the Catalan Parliament

section 81 § 3

"The order of business of the plenary sitting may be amended if so decided, on a motion from the President, by two parliamentary groups or by one fifth of all the Members of Parliament, or where so required by law. Where an item is to be inserted, it must comply with statutory procedures ... unless an explicit agreement has been concluded to the contrary, by an absolute majority".

section 135 (1) and (2) (as worded at the material time)

"1. A legislative bill may be dealt with directly and on a single reading by the Plenary Parliament or by a parliamentary committee if warranted by the nature of the bill or the simplicity of its formulation. Single-reading procedure must be approved by the Plenary Parliament on a motion from the Government or the Bureau of the Parliament, after consultation with or at the request of the Spokespersons' Committee.

2. Legislative bills signed by all the parliamentary groups may be dealt with under single-reading procedure by the Plenary Parliament or by a parliamentary committee as provided in paragraph 1 above. Once the preliminaries have been conducted and the single-reading procedure requested has been implemented, the Bureau of the Parliament shall order the publication of the legislative bill and its transmission to the Government, pursuant to section 111 (2)".

4. Venice Commission

On 3 March 2017 the European Commission for Democracy through Law (the Venice Commission) issued an opinion on Law No. 15/2015 of 16 October 2015 amending Organic Law No. 2/1979[1]. In its conclusions[2] the Venice Commission stated as follows:

"[J]udgments of Constitutional Courts have a final and binding character. As a corollary of the supremacy of the Constitution, judgments of Constitutional Courts have to be respected by all public bodies and individuals. Disregarding a judgment of a Constitutional Court is equivalent to disregarding the Constitution and the Constituent Power, which attributed the competence to ensure this supremacy to the Constitutional Court. When a public official refuses to execute a judgment of the Constitutional Court,

1. CDL-AD(2017)003, Opinion on the law of 16 October 2015 amending Organic Law No. 2/1979 on the Spanish Constitutional Court.

2. CDL-AD(2017)003, paragraph 69.

he or she violates the principles the rule of law, the separation of powers and loyal cooperation of State organs. Measures to enforce these judgments are therefore legitimate. In the light of the absence of common European standards, this opinion examines to which extent the Amendment introduced to Organic Law no. 2/1979 on the Constitutional Court of Spain is an appropriate means to achieve this legitimate objective".

5. *Constitutional Court Judgment no. 114/2017 of 17 October 2017 on* amparo *appeal no. 4334-2017 against Law No. 19/2017 known as the "law on the self-determination referendum":*

"...

The [procedure for the approval] of the impugned law was conducted in the absence of any legislative procedure provided for in the Rules of Procedure of the Parliament of Catalonia [RPC] and through quite inappropriate channels (Rule 81 § 3 RPC). The majority used [those channels] to improvise and cobble together an *ad hoc* [procedure] leaving the involvement and the rights of the other groups and MPs entirely at the minority's discretion.

...

The majority imposed, with the support of the Bureau and the President [of Parliament], the introduction of an atypical 'procedure' for the occasion, apparently mirroring the 'single-reading' procedure laid down in the Rules of Procedure of the Parliament of Catalonia (Rule 135 § 2 concerning that procedure was and remains suspended by decision of this Court of 31 July 2017). This has led to an arbitrary derogation ... from the statutory rules on enactment of legislation and a blatant breach of the specific provisions set out in the Rules of Procedure of the Parliament of Catalonia governing legislative reform.

...

The majority of the House claimed to be relying on Rule 81 § 3 RPC, but that provision does not permit such an operation. It provides that the agenda of the Plenary Parliament may be amended on a motion from two parliamentary groups .... [The Rule in question] is set out in Title IV RPC and is in no way applicable to any kind of legislative procedure.

...".

COMPLAINTS

14. Relying on Articles 10 and 11 of the Convention taken together and on Article 3 of Protocol No. 1, the applicants complained that the Constitutional Court's decision to suspend the holding of the plenary sitting amounted to a breach of their rights to freedom of expression and to freedom of assembly, inasmuch as they had been prevented from expressing the will of the electors who had voted in the referendum on 1 October 2017. They emphasised that there was no clear and precise basis for the Constitutional Court to prohibit the Parliament of Catalonia from meeting.

15. Relying on Article 6 of the Convention, the applicants submitted, without substantiating their arguments, that neither they nor the Parliament had had access to a tribunal to put forward their complaints.

LAW

A. The applicants' victim status

16. The first point to be established is whether there was a violation of the rights relied upon in respect of the applicants themselves or of the Parliament of the Autonomous Community of Catalonia. To that end, the Court must seek to ascertain whether the application can be considered as having been lodged by a "group of individuals" or by a "governmental organisation".

17. Indeed, the Court's case-law is clear about the fact that in international law the expression "governmental organisation" cannot be held to refer only to the government or the central organs of the State. Where powers are distributed along decentralised lines, the expression refers to any national authority exercising public functions. Consequently, such authorities have no standing to make an application to the Court under Article 34 of the Convention in international law, however autonomous they may be from the said organs (see *Assanidze v. Georgia* [GC], no. 71503/01, §§ 148-149, ECHR 2004-II). Thus their acts or omissions incur the responsibility of the State under the Convention (see *Government of the Autonomous Community of the Basque Country v. Spain* (dec.), no. 29134/03, 3 February 2004; *Karagiannis v. Greece* (dec.), no. 33408/05, 27 September 2007; *Breisacher v. France* (dec.), no. 76976/01, ECHR 2003-X; *Section de commune d'Antilly v. France* (dec.), no. 45129/98, ECHR 1999-VIII; *Gemeinde Rothenthurm v. Switzerland*, no. 13252/87, Commission decision of 14 December 1988, DR 59, p. 251; *Ayuntamiento de Mula v. Spain* (dec.), no. 55346/00, ECHR 2001-I; and *Danderyds Kommun v. Sweden* (dec.), no. 52559/99, 7 June 2001). Finally, albeit in a case involving the responsibility of a State, the Court held that it was not its role to examine disputes between institutions or over internal politics (see *Assanidze,* cited above, § 149).

18. The Court notes that the present case concerns the suspension of a plenary sitting of the Parliament of an autonomous community. That restriction was imposed by the Constitutional Court as an interim measure pending its decision on the merits of an *amparo* appeal lodged by sixteen Members of that Parliament.

19. The application was lodged on an individual basis by 76 of the 135 MPs in that Parliament, some of them as members of two parliamentary groups (*Junts pel Sí* and *Candidatura d'Unitat Popular Crida Constituent*), and some of them as members of the Bureau of the Parliament of Catalonia. Consequently, the Court considers that the rights and freedoms relied upon

by the applicants concern them individually and are not attributable to the Parliament of Catalonia as an institution (see, to converse effect, *Demirbas and Others v. Turkey* (dec.), no. 1093/08, 9 November 2010).

20. It follows that the applicants can be characterised as a "group of individuals" claiming to be the victim of a violation of the rights set forth in the Convention within the meaning of Article 34 of the Convention.

B. The complaint under Articles 10 and 11 of the Convention

21. The applicants complain that the restriction imposed by the Constitutional Court is contrary to Article 10 read in conjunction with Article 11 of the Convention. The provisions relied upon read as follows:

Article 10

"1. Everyone has the right to freedom of expression. This right shall include freedom to hold opinions and to receive and impart information and ideas without interference by public authority and regardless of frontiers. This Article shall not prevent States from requiring the licensing of broadcasting, television or cinema enterprises.

2. The exercise of these freedoms, since it carries with it duties and responsibilities, may be subject to such formalities, conditions, restrictions or penalties as are prescribed by law and are necessary in a democratic society, in the interests of national security, territorial integrity or public safety, for the prevention of disorder or crime, for the protection of health or morals, for the protection of the reputation or rights of others, for preventing the disclosure of information received in confidence, or for maintaining the authority and impartiality of the judiciary."

Article 11

"1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions for the protection of his interests.

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. This Article shall not prevent the imposition of lawful restrictions on the exercise of these rights by members of the armed forces, of the police or of the administration of the State."

1. Preliminary considerations

22. The Court has emphasised that the freedom of assembly provided for in Article 11 is closely linked with the freedom of expression guaranteed by Article 10, given that the protection of personal opinions, secured by the latter, is one of the objectives of freedom of peaceful assembly as enshrined in Article 11 (see *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 101, 15 November 2018).

23. The Court further acknowledges that in the sphere of political debate the guarantees of Articles 10 and 11 are often complementary (see *Primov and Others v. Russia*, no. 17391/06, § 92, 12 June 2014). Notwithstanding its autonomous role and particular sphere of application, Article 11 must also be considered in the light of Article 10, where the aim of the exercise of freedom of assembly is the expression of personal opinions, as well as the need to secure a forum for public debate and the open expression of protest (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, § 86, ECHR 2015, with the references therein).

24. The Court notes that in the present case, in relation to the same facts, the applicants rely on two separate provisions of the Convention, namely Article 10 and Article 11. It takes the view that in the particular circumstances of the case, Article 10 is to be regarded as a *lex generalis* in relation to Article 11, a *lex specialis* (see *Ezelin v. France*, 26 April 1991, § 35, Series A no. 202). Thus, inasmuch as the applicants primarily complain about the suspension of the plenary sitting of the Parliament of Catalonia scheduled for 9 October 2017, the Court considers that this complaint must be examined in the light of Article 11 only (see *Schwabe and M.G. v. Germany*, nos. 8080/08 and 8577/08, § 101, ECHR 2011; see also, *mutatis mutandis*, *Galstyan v. Armenia*, no. 26986/03, §§ 95-96, 15 November 2007, and *Primov and Others*, cited above, § 91).

25. In that regard, the Court reiterates that the right to freedom of assembly is a fundamental right in a democratic society and, like the right to freedom of expression, is one of the foundations of such a society. Thus, it should not be interpreted restrictively (see *Kudrevičius and Others v. Lithuania,* cited above, § 91, and *Taranenko v. Russia*, no. 19554/05, § 65, 15 May 2014). To avert the risk of a restrictive interpretation, the Court has refrained from formulating the notion of an assembly, which it regards as an autonomous concept, or exhaustively listing the criteria which would define it. It has specified where necessary that the right to freedom of assembly covers both private meetings and meetings in public places, whether static or in the form of a procession, and that it can be exercised by individual participants and by the persons organising the gathering (see *Kudrevičius and Others*, cited above, § 91, with the references therein, and *Lashmankin and Others*, cited above, § 402). It has added that Article 11 of the Convention only protects the right to freedom of "peaceful assembly", a notion which does not cover a demonstration where the organisers and participants have violent intentions. The guarantees of Article 11 therefore apply to all gatherings except those where the organisers and participants have such intentions, incite violence or otherwise reject the foundations of a democratic society (see *Kudrevičius and Others*, cited above, § 92, with the references therein).

2. Existence of an interference

26. The Court notes that in the present case the interference with the applicants' right to freedom of assembly was occasioned by the Constitutional Court's decision of 5 October 2017 declaring the appeal admissible and ordering the interim suspension of the parliamentary sitting on 9 October.

3. Justification of the interference

27. Such an interference infringes Article 11 unless it was "prescribed by law", pursued one of the legitimate aims listed in paragraph 2 of that provision, and was "necessary in democratic society" to achieve those aims.

(a) Prescribed by law

28. The Court reiterates that the expression "prescribed by law" in Articles 8 to 11 of the Convention not only requires that the impugned measure should have some basis in domestic law, but also refers to the quality of the law in question, which should be adequately accessible and foreseeable, that is, formulated with sufficient precision to enable the individual – if need be with appropriate advice – to regulate his conduct (see, among other authorities, *Sunday Times v. the United Kingdom* (no. 1), 26 April 1979, § 49, Series A no. 30), although experience shows that it is impossible to attain absolute precision in the framing of laws (see, for instance, *Ezelin*, cited above§ 45).

29. As regards the complaint concerning the lack of a legal basis for suspending the plenary sitting, the Court observes that section 56 of the Organic Law on the Constitutional Court provides for the possibility of adopting any necessary preventive measures and interim decisions aimed at preventing the *amparo* appeal from losing its purpose. Section 56 also provides that in exceptional cases of urgency, the suspension and the preventive and interim measures may be ordered as part of the decision on the admissibility of the appeal. Such order can be challenged within five days of its notification by either the Public Prosecutor's Office or any of the other parties appearing. The fact cannot be overlooked that in the instant case the Constitutional allowed the parties ten days to do so.

30. As for the foreseeability of that interference, the Court noted that in the present case the plenary sitting of Parliament had been convened pursuant to section 4 (4) of Law No. 19/2017. That Law had been provisionally suspended on 7 September 2017 by the plenary Constitutional Court in the framework of Constitutional Court proceedings no. 4334/17, thus rendering the Law temporarily inapplicable *de facto*. The suspension was personally notified to all the Members of Parliament. Moreover, Law No. 20/2017 on the procedure for judicial transition and for the foundation of the Republic, had also been suspended by the Constitutional Court on 12 September 2017.

Both laws were declared unconstitutional, on 17 October and 8 November 2017 respectively.

31. Furthermore, the Court observes that judgment no. 259/2015, delivered by the Constitutional Court on 2 December 2015, can already be considered as a precedent for that Court's position on the procedure for setting up an independent State in Catalonia. Indeed, the Constitutional Court declared unconstitutional and null and void Resolution 1/XI of the Parliament of Catalonia, adopted on 9 November 2015, which had been aimed at introducing the initial measures in that sphere.

(b) Legitimate aim

32. The Court observes that there is no valid reason to depart from the reasons put forward by the Constitutional Court in its 5 October 2017 decision concerning the aim sought to be achieved by the impugned measure, that is to say to ensure the protection of the rights and freedoms of minority parliamentarians in the Catalan Parliament against possible abuse by the parliamentary majority. Indeed, the request for the plenary sitting had been submitted by parliamentary groups comprising 76 of the 135 members of the autonomous parliament. The measure ordered by the Constitutional Court had been aimed at enabling the *amparo* appellants legitimately to exercise their duties (*jus in officium*) pursuant to Article 23 of the Spanish Constitution.

33. Having regard to the circumstances of the present case, the Court considers that the suspension had pursued several of the legitimate aims listed in Article 11, particularly the interests of public safety, the prevention of disorder and the protection of the rights and freedoms of others (see *Herri Batasuna and Batasuna v. Spain*, nos. 25803/04 and 25817/04, § 64, ECHR 2009 and, *mutatis mutandis*, *Sürek v. Turkey (no. 1)* [GC], no. 26682/95, § 52, ECHR 1999-IV).

(c) Necessity in a democratic society

34. The exceptions set out in Article 11 are to be construed strictly; only convincing and compelling reasons can justify restrictions on freedom of association. In determining whether a necessity for the purposes of Article 11 § 2 exists, the States have only a limited margin of appreciation, which goes hand in hand with rigorous European supervision embracing both the law and the decisions applying it, including those given by independent courts (see, for example, *Herri Batasuna and Batasuna,* cited above, § 77).

35. When the Court carries out its scrutiny, its task is not to substitute its own view for that of the relevant national authorities but rather to review the decisions which they delivered in the exercise of their discretion. This does not mean that the supervision is limited to ascertaining whether the respondent State exercised its discretion reasonably, carefully and in good faith; what the Court has to do is to look at the interference complained of in

the light of the case as a whole and determine whether it was "proportionate to the legitimate aim pursued" and whether the reasons adduced by the national authorities to justify it are "relevant and sufficient". In doing so, the Court has to satisfy itself that the national authorities applied standards which were in conformity with the principles embodied in Article 10 and, moreover, that they relied on an acceptable assessment of the relevant facts (see *Parti nationaliste basque – Organisation régionale d'Iparralde v. France*, no. 71251/01, § 46, ECHR 2007-II).

36. In the instant case, the Court observes that the decision of the Bureau of the Autonomous Parliament to authorise the holding of the plenary sitting had presupposed blatant non-compliance with the decisions given by the Constitutional Court on 7 and 12 September 2017 allowing the suspension of Laws nos. 19/2017 and 20/2017 respectively. Accordingly, by order the interim suspension, the Constitutional Court was intending to ensure compliance with its own decisions, thus preserving the constitutional order. In support of that approach, the Court notes that it transpires from the opinion issued by the Venice Commission (see above) that it is compulsory to comply with the judgments delivered by constitutional courts, as they have competence to order any measures which they see fit to ensure such compliance.

37. The Court further refers to the reasoning set out in the 17 October 2017 judgment of the Constitutional Court concerning irregularities in the approval procedure for Law no. 19/2017, having led to the convening of the 9 October plenary sitting. It reiterates in that regard that a political party may promote a change in the law or the legal and constitutional structures of the State on two conditions: firstly, the means used to that end must in every respect be legal and democratic; secondly, the change proposed must itself be compatible with fundamental democratic principles (see *Herri Batasuna and Batasuna,* cited above, § 79). Finally, as noted in the judgment delivered by the Constitutional Court on 26 April 2018, the Court considers that it was essential, in the particular circumstances of the case, to prevent, firstly, the parliamentarians representing a parliamentary minority from being impeded, by an unlawful procedure put in place by the majority, in the legitimate exercise of their functions (*jus in officium*) pursuant to Article 23 of the Spanish Constitution, and secondly, any indirect infringement of the citizens' constitutional right to participate in public affairs through the intermediary of their representatives.

38. Consequently, the interference with the applicants' right to freedom of assembly may reasonably be deemed, even in the framework of the limited margin of appreciation afforded to States, to have met a "pressing social need". It follows that the suspension of the plenary sitting was "necessary in a democratic society", *inter alia* in the interests of public safety, for the prevention of disorder and for the protection of the rights and freedoms of

others, within the meaning of Article 11 § 2 of the Convention (see, *mutatis mutandis*, *Herri Batasuna and Batasuna*, cited above, §§ 91 and 94).

39. Moreover, the fact cannot be overlooked that the President of the Catalan Government appeared before the plenary Parliament on the next day, that is, on 10 October. During that meeting he declared Catalonia independent, which declaration was then left legally inoperative by the Parliament itself.

40. In the light of the foregoing considerations, this complaint should be rejected as manifestly ill-founded, pursuant to Article 35 §§ 3 and 4 of the Convention.

C. The complaint under Article 3 of Protocol No. 1

41. Relying on Article 3 of Protocol No. 1, the applicants complain that the suspension infringed the freedom of expression of the opinion of the people in the choice of the legislature as secured under that provision:

Article 3 of Protocol No. 1

> "The High Contracting Parties undertake to hold free elections at reasonable intervals by secret ballot, under conditions which will ensure the free expression of the opinion of the people in the choice of the legislature."

42. The Court observes that the plenary sitting had been intended to assess the results obtained in the 1 October vote, and the effects thereof. It might be recalled in that connection that the Court has already had occasion to determine the question whether an independence referendum can be considered as one of the rights protected by Article 3 of Protocol No. 1 to the Convention. It accepted that the term "legislature" did not necessarily refer exclusively to the national parliament; the word should be interpreted in accordance with the constitutional structure of the State in question (see *Py v. France*, no. 66289/01, § 36, ECHR 2005-I (extraits); *Mathieu-Mohin and Clerfayt v. Belgium* of 2 March 1987, Series A no. 113, p. 23, § 53; and *Matthews v. the United Kingdom* [GC], no. 24833/94, § 40, ECHR 1999-I). Nevertheless, in a case concerning the Scottish referendum, the Court held that even though it might be considered that the referendum had been aimed at determining the *type of legislature* to be established, electoral procedures taking the form of a referendum did not fall within the ambit of Article 3 of Protocol No. 1 (see *Moohan and Gillon v. the United Kingdom* (dec.), nos. 22962/15 and 23345/15, §§ 40 and 41, 13 June 2017).

43. The Court is obviously aware of the diversity of the various electoral systems, and it is for each member State to organise the procedures in accordance with its own democratic vision (see, for example, *Scoppola v. Italy* (no. 3) [GC], no. 126/05, § 83, 22 May 2012, and *Hirst v. the United Kingdom* (no. 2) [GC], no. 74025/01, § 61, ECHR 2005-IX). Accordingly, the Court has not excluded the possibility that a democratic process described

as a "referendum" by a Contracting State could potentially fall within the ambit of Article 3 of Protocol No. 1 (see *McLean and Cole v. the United Kingdom*, (dec), no. 12626/13 and 2522/12, § 33, 11 June 2013).

44. Nevertheless, in order to do so the process would need to take place "under conditions which will ensure the free expression of the opinion of the people in the choice of the legislature" (see *Moohan and Gillon*, cited above, § 42). Those conditions were not met in the instant case. Indeed, the plenary sitting of the Parliament had been scheduled pursuant to section 4 (4) of Law no. 19/2017. That Law had been provisionally suspended on 7 September 2017 by the Constitutional Court in plenary session in the framework of Constitutional Court proceedings no. 4334/17, thus rendering the Law temporarily inapplicable. The suspension had been personally notified to all the Members of Parliament.

45. Consequently, the decision given by the Bureau of the Parliament had presupposed blatant non-compliance with the decisions of the Constitutional Court, which had been aimed at protecting the constitutional order.

46. It follows that the applicants' complaint under Article 3 of Protocol No. 1 is incompatible *ratione materiae* with the provisions of the Convention and must be rejected pursuant to Article 35 §§ 3 and 4 of the Convention.

D. The complaint under Article 6 of the Convention

47. Finally, the applicants rely on Article 6 of the Convention, the relevant passages of which provide:

Article 6 § 1

> "In the determination of his civil rights and obligations ... everyone is entitled to a fair ... hearing ... by a ... tribunal ...".

48. The Court notes that the applicants merely submit that neither they themselves nor Parliament had had access to a tribunal in order to uphold their claims.

49. The Court observes that that complaint is unsubstantiated. It follows that it must be rejected as manifestly ill-founded, pursuant to Article 35 §§ 3 and 4 of the Convention. It further notes that the Parliament of Catalonia had been a party, through the intermediary of its legal services, to the *amparo* proceedings which had led to the judgment of 26 April 2018.

For these reasons, the Court, unanimously,

Declares the application inadmissible.

Done in French and notified in writing on 28 May 2019.

Stephen Phillips Registrar	Vincent A. De Gaetano President

APPENDIX

No.	Forename SURNAME	Date of birth
1.	Maria Carme FORCADELL I LLUIS	29/05/1955
2.	Oriol AMAT SALAS	14/03/1957
3.	Antoni BALASCH PARISI	02/11/1958
4.	Ramona BARRUFET SANTACANA	09/10/1959
5.	Dolors BASSA COLL	02/02/1959
6.	Albert BATALLA SISCART	25/10/1977
7.	Albert BATET CANADELL	05/03/1979
8.	Germà BEL QUERALT	15/02/1963
9.	David BONVEHÍ TORRAS	12/03/1979
10.	Albert BOTRAN PAHISSA	14/01/1984
11.	Mireia BOYA BUSQUET	28/07/1979
12.	Montserrat CANDINI PUIG	08/09/1957
13.	Joan Ramon CASALS MATA	02/08/1974
14.	Magda CASAMITJANA AGUILÀ	27/01/1963
15.	Antoni CASTELLÀ CLAVÉ	26/06/1970
16.	Carmina CASTELLVÍ VALLVERDÚ	15/03/1967
17.	Anna CAULA PARETAS	06/04/1971
18.	Violant CERVERA GÒDIA	12/06/1969
19.	Ferran CIVIT MARTÍ	22/12/1977
20.	Antoni COMÍN OLIVERES	07/03/1971

No.	Forename SURNAME	Date of birth
21.	Lluis Maria COROMINAS DIAZ	14/02/1963
22.	Jordi CUMINAL ROQUET	13/02/1977
23.	Adriana DELGADO HERREROS	15/06/1978
24.	Chakir EL HOMRANI LESFAR	15/01/1979
25.	Albano Dante FACHIN POZZI	22/04/1976
26.	Anna FIGUERAS IBÀÑEZ	04/08/1969
27.	Natàlia FIGUERAS PAGÈS	07/12/1989
28.	Josep Maria FORNÉ FEBRER	12/07/1962
29.	Montserrat FORNELLS SOLÉ	07/06/1983
30.	Anna GABRIEL SABATÉ	13/09/1975
31.	Joan GARRIGA QUADRES	21/04/1953
32.	Joan GINER MIGUELEZ	26/06/1989
33.	Gerard GOMEZ DEL MORAL FUSTER	17/10/1989
34.	Germà GORDÓ AUBARELL	02/01/1963
35.	Lluís GUINÓ SUBIRÓS	29/05/1969
36.	Oriol JUNQUERAS VIES	11/04/1969
37.	M. Assumpció LAÏLLA JOU	10/03/1975
38.	Lluís LLACH GRANDE	07/05/1948
39.	Neus LLOVERAS MASSANA	03/08/1963
40.	Àngels MARTINEZ CASTELLS	09/05/1948
41.	Fabian MOHEDANO MORALES	17/02/1975

No.	Forename SURNAME	Date of birth
42.	Jordi MUNELL GARCIA	17/11/1965
43.	Joan Josep NUET PUJALS	08/08/1964
44.	Jordi OROBITG SOLÉ	15/10/1966
45.	Montserrat PALAU VERGÉS	13/07/1958
46.	Marta PASCAL CAPDEVILA	10/04/1983
47.	Àngels PONSA ROCA	10/03/1960
48.	Carles PRATS COT	22/06/1971
49.	Carles PUIGDEMONT CASAMAJÓ	29/12/1962
50.	Eulàlia REGUANT CURA	19/09/1979
51.	Eduardo REYES PINO	25/03/1951
52.	Carles RIERA ALBERT	01/04/1960
53.	Irene RIGAU OLIVER	22/06/1951
54.	David RODRIGUEZ GONZÁLEZ	08/09/1967
55.	Meritxell ROIGÉ PEDROLA	15/01/1976
56.	Raül ROMEVA RUEDA	12/03/1971
57.	Maria ROSELL MEDALL	30/06/1959
58.	Marta ROVIRA VERGÉS	25/01/1977
59.	Maria Dolors ROVIROLA COROMÍ	09/07/1960
60.	Josep RULL ANDREU	02/09/1968
61.	Sergi SABRIÀ BENITO	02/07/1975
62.	Sergi SALADIÉ GIL	17/01/1974
63.	Benet SALELLAS VILAR	07/10/1977
64.	Marc SANGLAS ALCANTARILLA	23/10/1971
65.	Jordi-Miquel SENDRA VELLVÈ	15/11/1961

No.	Forename SURNAME	Date of birth
66.	Maria SENSERRICH GUITART	18/11/1980
67.	Gabriela SERRA FREDIANI	18/12/1951
68.	Anna SIMÓ CASTELLÓ	26/07/1968
69.	Bernat SOLÉ BARRIL	30/01/1975
70.	Marc SOLSONA AIXALÀ	07/04/1976
71.	Roger TORRENT RAMIÓ	19/07/1979
72.	Jordi TURULL NEGRE	08/09/1966
73.	Teresa VALLVERDÚ ALBORNÀ	02/02/1968
74.	Mireia VEHÍ CANTENYS	09/02/1985
75.	Alba VERGÉS BOSCH	03/09/1978
76.	Montserrat VILELLA CUADRADA	07/07/1966